AFRICAN DISTILLERS LIMITED

Versus

VARUN BEVERAGES (ZIMBABWE) (PVT) LTD

And

THE REGISTRAR OF TRADE MARKS

HIGH COURT OF ZIMBABWE
COMMERCIAL DIVISION
CHILIMBE J
HARARE 18 March & 17 November 2025

Court Application

L.Uriri with *T. Muguza* for the applicant
T. Magwaliba with *P. Ranchhod* for first respondent
No appearance for second respondent

CHILIMBE J

BACKGROUND

[1] Applicant ("Afdis") and first respondent ("Varun") are both involved in the manufacture and sale of various types of beverages. The registration and enjoyment of product intellectual property rights form intrinsic aspects of the two parties` respective businesses.

[2] A dispute broke out over the use and enjoyment of such intellectual property rights. Afdis filed the present application seeking deregistration of trade mark 437/18 "STING (LABEL)" used in some of Varun`s products. Varun opposed the application and raised, (4) points *in limine* under the following heads; -

i. Procedural irregularities
ii. Fatal non-joinder
iii. Prescription
iv. Failure to plead a recognisable causa

[3] Before turning to the details of the dispute and arguments on the preliminary points, I will briefly examine the applicable intellectual property legislation. This includes the relevant forums created to resolve intellectual property disputes plus their attendant jurisdiction and procedure. This backdrop should quicken the resolution of the issues raised in argument as well as address potentially recurrent questions in the area of intellectual property disputes.

[4] I commence in that regard, with the Trade Marks Act [Chapter 26:04] ("the Trade Marks Act") which sets out the rights now under contestation in this herein dispute. The Trade Marks Act -previously the Trade Marks Act [Chapter 203] was reclassified and allocated its current citation under the Statute Law Compilation and Revision Act [Chapter 1:03][1] .

[5] The Act was also extensively revised under the Trade Marks Amendment Act, 2001 (Act No. 10 of 2001) in order to align it to international intellectual property rights best practice.[2] Associated with this development was the enactment, on 10 September 2010, of the Intellectual Property Tribunal Act [Chapter 26:08] ("the Intellectual Tribunal Act"). This latter statute introduced the Intellectual Property Tribunal charged with the duty to adjudicate intellectual property disputes.

[6] I must state that the Intellectual Property Tribunal is a specialised Division of the High Court of Zimbabwe. This is per the Judicial Laws Amendment (Ease of Settling Commercial and Other Disputes) Act Number 7 of 2017 ("Judicial Laws Amendment), gazetted on 23 June 2017- which prescribed that; -

> "5 For the avoidance of doubt it is declared that the following are specialised divisions of the High Court for the purpose of section 171(3) of the Constitution-
>
> (a) the Electoral Court constituted in terms of Part XXII of the Electoral Act [Chapter 2:13]; and

[1] Date of commencement: 10th February, 1989.
[2] The amendments were brought into effect on 10 September 2010 through SI 153/2010.See also an article by L.Takaendesa, https://www.honeyb.co.zw/zimbabwe-intellectual-property-tribunal-hands-down-first-judgement/

(b) the Fiscal Appeal Court constituted in terms of Part II of the Fiscal Appeal Court Act [Chapter 23:05]; and

(c) the Special Court for Income Tax Appeals constituted in terms of section 64 of the Income Tax Act [Chapter 26:06]; and

(d) the Intellectual Property Tribunal constituted in terms of the Intellectual Property Tribunal Act [Chapter 26:08]; and

(e) the criminal, civil and family law divisions of the High Court established before the commencement of this Act.

[7] The Judicial Laws Amendment also facilitated the creation of the Commercial Division of the High Court ("Commercial Court"). Again, I must stress that the purpose, mandate, jurisdiction and procedure of this Division of the High Court are matters central to the disposal of the points *in limine*. Among other reason, they influence to a significant extent, the exercise of discretion demanded by the matters placed before me.

[8] The said mandate of the Commercial Court has been extensively dealt with in a number of decisions (see *Blakey Investments (Pty) Ltd v Delta Beverages (Pvt) Ltd & 2 Ors* HH 388-23, *Rosenfeldt v Brackenhill Trust & 4 Ors* HH 348-23, and *Hashiti &Anor v Seedco* HH 615-24, *Inebriant Cache & Anor v French Smith trading as Customs Services* SC 89-24, *Centenary Tobacco (Pvt) Ltd v CMED* HH 591-24, and *Streamspace Incorporated (Pvt) Ltd ,Hayes Construction (Pvt) Ltd & 6 Ors* HH 53-25).

THE APPLICATION BEFORE THE COURT

[9] As part of the background necessary to expedite the disposal of the arguments before me, I must draw attention to the following; -Afdis brought an application to the Commercial Court. This point is critical. The present application was not filed in the Intellectual Property Tribunal. Afdis` application says as much.

[10] So too do the rest of the extensive pleadings filed of record. Including ancillary correspondence, and documentation such proofs of service and notices of filing. They all universally recognised and stated that the papers were filed in the Commercial Court. All of them- apart from the founding affidavit deposed to by applicant`s Company Secretary- Ms Lydia Mutamuko.

[11] Her affidavit was headed "In the High Court of Zimbabwe sitting as the Intellectual Property Tribunal". The draft order is addressed to the Commercial Division. This glaring

position notwithstanding, both counsel (at some point luring the court in the process) proceeded on the understanding that the present proceedings were before the Intellectual Property Tribunal.

[12] Neither counsel issued direct comment on the references to the Commercial Court in the papers. This anomaly betrays what I may state as the first slip of guard on the part of counsel. Which in my view, generated much of the arguments accompanying the points *in limine*.

THE DISPUTE BEFORE THE COURT

[13] Turning to the dispute, Ms Mutamuko set out the basis of Afdis`s claim. She averred in the founding affidavit that Afdis was the proprietor of 3 trademarks registrations namely; -

i. 924/2003 "NIKOLAI VODKA STING SPIRIT COOLER(LABEL)"
ii. 925/2003 "STING S" (LOGO)
iii. 926/2003 "STING" (WORD)

[14] These trademarks were according to Ms Mutamuko, registered on 14 November 2003 in class 33 relating to "alcoholic beverages except beers". She further contended that Afdis had or was in the process of observing all compliance formalities associated with the registrations and that as such, was entailed to protection of its exclusive right by the law.

[15] It was Ms Mutamuko`s further contention that in violation of Afdis`s said right, Varun had, in 2018, registered trade mark "STING (LABEL)" 437/18 in class 32 relating to "mineral and aerated waters, energy drinks, carbonated soft drinks and other non-alcoholic drinks, fruit drinks and fruit juices, syrups and other preparations for making beverages".

[16] Varun opposed the application on the merits and *in limine* through the opposing affidavit sworn to by its Corporate Secretary, Mr Mayank Jhunjhunwala. *In limine*, he averred firstly that Varun was no longer the registered proprietor of the trade mark having assigned its rights 27 October 202, to an entity named PepsiCo, Inc -("PepsiCo"), registered in North Carolina in the United States of America. As such, Mr Jhunjhunwala averred that Afdis ought to have cited the registered proprietor PepsiCo.

[17] Secondly, Mr Jhunjhunwala alleged that the present application, having been filed more than 5 years after registration was affected by the bar in s16 of the Trade Marks Act. On the merits, Mr Jhunjhunwala alleged that the trade marks were distinct. Afdis`s mark related to

Class 33 for alcoholic beverages (except beers) whilst Varun`s lay in Class 32 for non-alcoholic beverages.

[18] These marks related to different product types or categories, alleged Mr Jhunjhunwala. Further, the trade marks` style and get up were "distinctly dissimilar". As such, there was no basis for Afdis to claim protection as the trade marks` characteristics admitted no confusion, contended Mr Jhunjhunwala. In addition, he stated that Afdis had failed to proffer any evidence of market confusion between the respective products sold under the 2 trademarks.

[18] Mr. Jhunjhunwala also informed the court that PepsiCo had registered the STING in other jurisdictions. It had thus been the registered proprietor of STING in the Communist Republic of Viet Nam (since 23 October 2002) and Singapore (since 14 March 2003). These events well preceded Afdis` 2003 Zimbabwean registrations.

[20] This international proprietorship of the STING trade mark made it unlikely that the mark would cause any confusion locally. Mr Jhunjhunwala averred Afdis had failed to object to registration of 437/18 in terms of s 22 of the Trade Marks Act. It was therefore improper for Afdis to belatedly seek to cure that oversight via the mechanism of the cancellation procedure provided for in the Trade Marks Act.

THE ISSUES IN, AND ANNEXURES TO, THE ANSWERING AFFIDAVIT

[21] The opposition ignited a number of abnegations in Afdis`s answering affidavit deposed to by the self-same Ms Mutamuko.She dismissed as baseless, the point raised by Varun *in limine*, that Afdis by necessity, had to pursue PepsiCo as the registered proprietor. The deponent impugned the purported assignment as invalid for various compliance breaches.

[22] These included the alleged violation of ss 14 and 15 of the Trade Marks Act by Varun, which rendered the registration void *ab initio*. Absence of proof that an assignment recordal notice had been filed within 12 months of assignment of the rights, in compliance with s 29 (2) of the Trade Marks Act.

[23] Ms Mutamuko also contended that the assignment recordal was not entered in the Trade Marks Register nor published in the Trade Marks Journal in violation of s 49 of the Trade Marks Act. Additionally, the deponent stated that the assignment breached exchange control requirements and thus s 50 of the same Act.

[24] She attached, to the answering affidavit, 3 further annexures; - (i) Varun`s opposition before the Registrar, of Afdis`s renewal of its trade mark application, (ii) Varun`s certificate of registration of the trade mark 437/18, and (iii)extracts from the Zimbabwe Intellectual Property Journal. Ms Mutamuko also raised the following proposals; -

paragraph 4.4 of Afdis`s answering affidavit; -

"4.4 Once the above issues have been clarified, the Applicant respectfully requests that this Honourable Court be amenable to an amendment of the Application to include the citation of all relevant parties, which the Applicant cannot ascertain at this stage because the 1st Respondent has not provided meaningful information in this regard."

paragraph 4.1 of Afdis`s answering affidavit; -

"……Additionally, now that the 1st Respondent is alleging that the trade mark has been assigned to PepsiCo, the Applicant submits that the trade mark registration must also be cancelled on the basis of section 16(2) …."

paragraph 9.2 of Afdis` answering affidavit; -

"……. In the event that this becomes necessary, the Applicant will apply for joinder of parties in terms of the rules of the Court or for a re-citation of the parties."

[These views were subsequently asserted in paragraph 3 of Afdis`s written submissions

"In its defence, the first respondent contends that there has been non-joinder of a party to whom it has assigned the registered mark (Pepsi Co Inc). It attached to its opposing papers the alleged assignment recordal. The answering affidavit contends that the statutory conditions precedent to a valid assignment have not been met and as such the alleged interest of the third party in the lis has not been established. In the event that such evidence is placed before the court, the applicant would seek the joinder of the third party."]

[25] The emphatic recusancy in the opposing and answering affidavits, amidst recriminations flagged by both sides in correspondence addressed to the Commercial Court Registrar prompted me to hold a case management conference. Having engaged the parties rather extensively during a case management hearing on 17 July 2024, I issued the following order by consent; -

1. Matter be and is hereby removed from the roll subject to the following directions;
    a) Each party to file supplementary written submissions (i) specifically on the procedural and evidentiary issues arising from the answering affidavit`s Assignment Recordal Notice (ii) generally on the answering affidavit itself together with attachments thereto,
    b) The supplementary written submissions to be filed as follows;
        i. applicant to file its submissions within seven (7) days of the date of this Order,
        ii. first respondent to file its written submissions within 7 days from the date applicant files its submissions,
        iii. applicant granted the option to file a short reply within three (3) days thereof,
    c) In either event, applicant to file a request for set down within twenty (20) days from the date of this Order,
    d) Each party to file, within 48 hours of the date of this Order, clearer copies, in manipulable PDF or word format, of the marks attached to their respective papers, including, for applicant, Annexure G to its founding affidavit,
2. Costs be in the cause.

ARGUMENTS ON THE POINTS *IN LIMINE*

[26] The additional written submissions were duly filed. The matter was set down for argument. Mr *Magwaliba* as noted, confined himself to the 4 points in *limine* listed in paragraph *[2]* above. I took it that the various issues raised in the papers had either been abandoned or required at this juncture no specific ruling from the court. I will therefore restrict myself to the issues arising from the 4 heads whose argument went as follows; -

i. First preliminary point: procedural irregularities

[27] The application, according to Mr *Magwaliba*, was irredeemably flawed. Afdis had approached the court seeking relief in terms of s 37 (1) of the Trade Marks Act. This provision required Afdis to file its application "in the prescribed manner", submitted counsel. Such application was neither filed in the General nor Commercial Divisions of the High Court. It had to be made to the Intellectual Property Tribunal ("Intellectual Tribunal") counsel argued.

[28] Afdis had however, according to Mr *Magwaliba*, filed the present proceedings and incorrectly so, as an ordinary High Court application in terms of r 59 of the High Court Rules SI 202/ 21("the High Court Rules"). Such procedure was inconsistent with the "prescribed manner" set out in s 37 (1) which in fact was reposed in the Tribunal`s rules namely the Trade Marks Tribunal Rules RGN 727/1976 ("RGN 727/76").

[29] This error, submitted counsel, generated a number of fatal irregularities. The rules in RGN 727/76 imposed on applicants seeking relief under s 37 (1), specific requirements-including usage of appropriate forms as well as the observance of requisite notice periods. Further, per s 12 (2) of the Intellectual Property Tribunal Act, a party only resorted to the High Court Rules where a procedure was not provided for in RGN 727/76.

[30] Mr *Magwaliba* argued that as a result, adoption by Afdis of this incorrect procedure had a cardinal impact on the validity of the proceedings and the constitutional right to a fair hearing of Varun and the registered proprietor-PepsiCo. These procedural defects in turn, offended the mandatory requirements set by Parliament in s 37 of the Trade Marks Act.

[31] As such, the court was precluded from condoning Afdis, argued Mr *Magwaliba* citing *Shumba v Zimbabwe Electoral Commission* 2008 (2) ZLR 65 (H). He proceeded to itemise the provisions in RGN 727/76 allegedly flouted by Afdis as follows; - Firstly, r 11(2) which required an applicant to state on the face of the application, the nature of its interest, the facts and basis thereof and relief sought.

[32] Secondly, r 11(3) (b) which obliged an applicant to serve the intended application on the registered proprietor, user and any other interested person appearing in the Register of Trade Marks-in addition to placing an advert in one issue of the Journal.

[33] Failure by Afdis to issue such notifications resulted in PepsiCo, the registered proprietor of the trade mark being rendered out of court. This fact still stood -notwhistanding the challenge by Afdis, of PepsiCo`s assumption of rights to the trade mark under assignment. Varun had brought the nature of PepsiCo`s interest to the fore in its opposing affidavit but Afdis elected to do nothing about it.

[34] Thirdly, r11(4) accorded a respondent a period of 60 days within which to answer any such applications. But because Afdis had adopted a wrong procedure, its application only granted the respondents 10 days. Further, counsel argued that in any event, Afdis` forum error was aggravated by the direction in its application, that the notice of opposition be filed in Form 29A.

[35] Not only was this an invitation to impropriety, it was impossibility to comply with. Form 29 A had been repealed together with the High Court Rules 1971.On the authority of *Rev Nyathi v The Trustees for The Time Being of The Apostolic Faith Mission of Africa & 5 Ors* SC 63-22, this error rendered the application incurably bad, submitted Mr. *Magwaliba*.

ii. Second preliminary point: fatal non-joinder

[36] Mr *Magwaliba* argued that non-joinder of PepsiCo was a fatal to the suit. Despite the apparent concession in paragraphs 4.4 and 9.2 of its answering affidavit (see paragraph *[25]* above), Afdis persisted with its cause without rectifying the non-joinder.

[37] Counsel referred to *Indium Investments (Pvt) Ltd v Kingshaven (Pvt) Ltd* 2015 (2) ZLR 40 (S) and *Rose v Arnold & Ors* 1995 (2) ZLR 17 (H) in arguing that the present application could not survive non-joinder of interested parties.

[38] The attempt by Afdis to impugn the assignment of the trade marks to PepsiCo was defeated by the presumption of validity in s 70 of the Trade Marks Act. Such presumption could only be offset by nullification proceedings. The current application was a attacked-not the assignment-but of the underlying registration.

[39] The contestations of the present causa left the assignment intact. Whether blighted by illegalities or not, that assignment remained, per *Oudekraal Estates (Pty) Ltd v City of Cape Town & Ors* 2004 (6) SA 222, a valid administrative act with valid legal consequence. As

such, in the absence of its nullification, PepsiCo was invested with legitimate interest in the present application.

iii.Third preliminary point: prescription

[40] Mr *Magwaliba* submitted that in Zimbabwe, the law extended to a litigant, the defence of prescription as a substantive right per in *Coutts & Anor v Ford* 1997 (1) ZLR 440 (H). Counsel argued that based on this principle, Afdis ` suit had prescribed because it was instituted outside the 5-year (post registration) period fixed by s16 of the Trade Mark Act.

[41] A reading of the same section against the causa, according to Mr. *Magwaliba* ousted the attempt by Afdis to seek refuge in the exceptions set out in that section. For that reason, the application could not prevail over the ineluctable bar of prescription set in s 16 of the Trade Marks Act. Counsel thus prayed for the dismissal, rather than mere striking-off of the present application.

iv. Fourth point *in limine*: no recognisable causa

[42] Mr *Magwaliba* submitted that Afdis had pleaded no identifiable cause of action in the matter before the court. He thus attacked the present application in rather scathing terms as a confused attempt to confuse the court. In support of his argument, counsel drew the court`s attention to paragraphs 19 and 20 of the founding affidavit where it was deposed as follows; -

> "19.I believe in terms of sections 37 of the Trade Marks Act; I am permitted to approach this Tribunal for recourse seeking the amendment of any entry on the Register by the Registrar.
>
> 20. Furthermore, the right that I seek to exercise through this application is provided in terms of section 39 (c) of the Act. These rights include the right to seek the cancellation of a mark appearing on the Register"

[43] Continuing, counsel submitted that paragraph 19 described an application to the Registrar whereas the present proceedings were launched in the Intellectual Property Tribunal. Further contradictions arose from the averments in paragraph 20 which, on the face

of it, were a clear extension of the causa set out in paragraph 19. Yet the aspects of cause if action set out in 2 paragraphs of the founding affidavit were incompatible.

[44] In paragraph 20, the deponent -per Mr *Magwaliba*-referred to s39 (c) a wholly inapplicable provision. The question was; -what was the purpose of referring to these provisions if not the confuse the court? Afdis had not pleaded its cause of action from the rights or procedure set out in s 14 of the Trade Marks Act.

[45] The same errors were sustained in paragraphs 4 and 12 of the heads of argument filed on behalf of Afdis. Counsel argued that the further references to ss 37 (1) (c) ,15 (1) (b), and 37 (2) therein betrayed Afdis` prevarication in the expression of its causa. It was a settled rule of procedure, according to Mr *Magwaliba*, that where a cause of action issues from a statute, the applicant must "identify that statute and comply with its procedures".

[46] Afdis had not selected the applicable provisions in the Trade Mark Act. It had instead, traversed all possibilities under that statute, in which registrations could be challenged, be it to the Registrar or Tribunal. On the question of costs, Mr *Magwaliba* described the application as a dogs` breakfast which warranted admonition through costs on a higher scale.

RESPONSE BY AFDIS

[47] Mr *Uriri*`s response went thus; - on RGN 727/76; - the present application was filed in terms of the Intellectual Tribunal Act and to the Intellectual Tribunal "a division of the High Court of Zimbabwe". The Intellectual Tribunal was yet to enact its own rules and by s 12, the High Court Rules applied. The transitional provisions in s 22 (3) of the Intellectual Tribunal Act did not save the old rules under RGN 727/76 but referred to rules governing procedure in the Patents Tribunal.

[48] Use of the repealed rules; - Mr *Uriri* disputed that reference to Form 29A in the application was fatal. The High Court had said so in many decisions including *National Pharmaceutical Company of Zimbabwe v Zealous Nyabadza* HH 66-24. On fatal non-joinder- Mr *Uriri* made no reference to the possibility of joinder, thus abandoning the intimation in the answering affidavit. He confined argued, instead, that even if it were to be assumed that joinder of PepsiCo was a matter of necessity, failure to do so could never be fatal to the proceedings.

[49] Insofar as the principle in *Indium v Kingshaven* (supra) was concerned, counsel distinguished that authority on the basis that the court a quo had erred by concluding the matter in the absence of a party affected by its order. In Mr *Uriri*`s own words, where the court realised that a party ought to have been joined to proceedings, it was obliged to move and have such party joined.

[50] Herein, there was no possibility of an order being issued against PepsiCo. For the reason that the interest of PepsiCo to the registration under attack was yet to be established. Counsel dismissed as invalid, the purported assignment-which founded PepsiCo`s interest. The presumption of validity attached to a certificate of registration not an assignment.

[51] Further, the presumption could be rebutted by evidence that registration was tainted by fraud or other impropriety. Mr *Uriri* cited a Philippines authority; - *MA. Sharmaine R. Medina /Rackey Crystal Top Corporation v Global Quest Ventures Inc* G.R. No. 213815, February 08, 2021[3] to support the contention that a prima facie presumption of validity of a trade mark registration was rebuttable. The question of PepsiCo's interest could not arise.

[52] On the time bar created by s s16 of the Trade Mark Act, Mr *Uriri* drew attention to the cause of action. This he argued, was predicated on the complaint that Varun`s registered trade mark so closely resembled that of Afdis as to offend against it. Counsel referred to the main heads of argument which inter alia stated in paragraph 21 that; -

> "The 1st Respondent reliance on the protection afforded under s 16 of the Trade Marks Act is also misplaced. While it is true that the aforesaid provision deems as valid all registered trademarks that remain unchallenged for 5 years; such statutory provision does not apply to trademarks that offend against s 14 (1) (a) of the same Act. In *casu* the complainant raised against the 1st Respondent's trade mark is that it occasions confusion in the market place. By dint of such nature of complaint the 1st Respondent cannot actuate the protection afforded by s 16 of the Trade Marks Act."

[53] As regards the usage of the wrong form and reliance on *Reverend Nyathi*, Mr *Uriri* which dealt with the question of wrong *dies induciae* rather than obsolete forms. This court had, in *Zealous Nyabadza* condoned usage of Form 29. Finally on causa, Mr *Uriri* was

[3] https://elibrary.judiciary.gov.ph/thebookshelf/showdocs/1/67489

adamant that his colleague`s arguments were inextricably embedded in the merits. In his reply, Mr *Magwaliba* endorsed his earlier arguments with no redaction.

ANALYSIS OF THE ARGUMENTS.

The jurisdiction, procedure and authority of the Intellectual Property Tribunal.

[54] Both counsel trained premised their arguments on procedure in the Intellectual Property Tribunal when addressing the question of RGN 727/76 and use of Form 29A. This poise represented a fundamental default and rendered the arguments palpably incongruent. The matter at hand as stated above, lay before the Commercial Court rather the Intellectual Property Tribunal as presumed by both counsel.

[55] It must be noted that the High Court and the Intellectual Property Tribunal enjoy parallel jurisdiction in trade mark infringement disputes. Sections 9A and 9B of the Trade Marks Act provide as follows; -

> 9A Entitlement to and nature of civil remedies for infringement
>
> (1) Subject to this Act, an infringement of a registered trade mark shall be actionable at the suit of the proprietor and any registered user of the mark.
>
> (2) Subject to this Act, in any proceedings for an infringement of a registered trade mark there shall be available to the plaintiff all such remedies by way of damages, interdict, attachment, the rendering of account, the delivery of improperly marked goods or of articles used or intended to be used for marking goods or otherwise, as are available in respect of the infringement of any other proprietary right.
>
> 9B Forum in which remedies for infringement may be sought
>
> Proceedings in respect of an infringement of a registered trade mark may be instituted—
> (*a*) in the Tribunal; or
> (*b*) in the High Court; or
> (*c*) subject to the jurisdictional limits provided for in the Magistrates Court Act [*Chapter 7:10*], in a magistrates court: Provided that the Tribunal shall not have jurisdiction to entertain criminal proceedings.

[56] Both the Supreme Court and this court have recognised that intellectual property rights claims may be brought in terms of s 9A to either the High Court or the Intellectual Property

Tribunal -see *Lion Match Zimbabwe Limited & Anor v Lion Match (Pty) Ltd* SC 93-22; *Bayer Aktiengesellschaft v Millborrow Animal Health (Zimbabwe) (Pvt) Ltd* HH 378-19 which issued from the Intellectual Property Tribunal.

[57] See also *Vivon Investments (Pvt) Ltd v Win-King Investments (Pvt) Limited* HH 272-16; *Zimbabwe Yellow Pages (Pvt) Ltd v E-Directories (Pvt) Ltd* HH 487-22; *Innscor Africa Limited v Slice Distributors (Pvt) Ltd & Anor* HH 06-23;*Terrence Kare v Chitaitai Chemicals (Pvt) Ltd* HH 157-24 ;*Leticia Kuda Mupawose v Ona Brands (Pvt) Ltd* HH 172-25 originating in the High Court including the seminal case of *Cairns Foods Ltd v Netrade Marketing (Pvt) Ltd* SC 106-21 wherein it was observed at page 1 that;-

> **"**Alleging trademark infringement, the appellant brought an application to the High Court (the Court *a quo*), in terms of s 9A (2) of the Trade Marks Act [*Chapter 26:04*] against the respondent."

[58] Three points arise. The first being that a party has a choice of forum between the High Court and the Intellectual Property Tribunal. I say so because the filing of process in a particular forum ushers in a dispute or proceedings in that said tribunal. Whether or not a matter lies to be determined by a particular judicial tribunal is not merely a matter of the whim or belief of the litigants.

[59] Whilst the objectives of the Commercial Court and Intellectual Property Tribunal may be deemed confluent, the two forums are different Divisions of the High Court. Section 5 of the Judicial Laws Amendment Act says so. Each Division has its own separate procedure, as a starting point. Disputes in the Commercial Division are regulated by the High Court (Commercial Division) Rules SI 123-20 ("the Commercial Court Rules") whilst s 12 of the Intellectual Property Tribunal Act provides for the creation of rules to govern procedure in the Intellectual Property Tribunal.

[60] The same provision also invokes the High Court Rules to resolve any procedural gaps not addressed in the Intellectual Property Tribunal rules. The Commercial Court Rules are in place but the Intellectual Property Tribunal rules are yet to be crafted. Mr *Magwaliba* argued that until such rules are promulgated, the old Trade Marks Tribunal rules RGN 727/76 apply to procedure in the Intellectual Property Tribunal. I will return shortly to this question after I dispense with the Form 29A argument.

[61] Again as already noted, Afdis-whatever its belief or intention-objectively elected to proceed in the Commercial Division of the High Court rather than in the Intellectual Property Tribunal. In that regard, Afdis` application lay to be governed by r 29 of the Commercial Court Rules.

[62] This rule obliged Afdis to utilise Form No. 10A-which Afdis in fact duly did. Form No.10A in turn required Afdis to invite its adversaries to file a notice of opposition "in Form No 29A!" That is what Form No.10A of the Commercial Court Rules prescribes-an obvious inadvertence because there is no Form 29A in those rules.

[63] As noted above, this clear inadvertence in the form of a misprint in the rules escaped the attention of both counsel. Resultantly, insofar as they related to usage of Form 29A, the fiery arguments from both sides must dissipate into a tepid anti-climax. The point *in limine* challenging use of an obsolete form and reference to Form 29A cannot succeed.

[64] I revert to argument that the old RGN 727/76 still regulate the conduct of proceedings in the Intellectual Property Tribunal. Mr *Magwaliba*, the sponsor of this view- read s37 of the Trade Marks Act as obliging a party to file, "in the prescribed manner" its application to the Intellectual Property Tribunal. My finding that this matter is regulated by the Commercial Court Rules abruptly puts the argument to rest.

[65] But having come this far and given the importance of the question, I will opine -without rendering a ruling (due to what I perceive with respect, as inadequate argument on it) on why I take the view that RGN 727/76 is no longer in force. As point (a), I note that the term "prescribed manner" is not described in s37 (1). I struggled to fathom how Mr *Magwaliba* threaded the nexus between procedure in the Intellectual Property Tribunal and the old rules.

[66] As point (b) I note that Mr *Uriri* confirmed that the Intellectual Property Tribunal`s rules were yet to be crafted. He concluded that the procedure in that tribunal was regulated by the High Court. He however based the latter view on s 22- the (equivocal) savings clause of the Intellectual Property Tribunal Act. Neither counsel adverted to the rules themselves. Neither was there an attempt to refer to the interpretational options offered by the Interpretation Act [Chapter 1:01]. As for the savings clause itself, this provision was singularly unhelpful. It dwelt entirely on the Patents Tribunal rules and said absolutely nothing about the old RGN 727/76 rules.

[67] As point (c) the authorities discussed above confirm that a party approaching the Intellectual Property Tribunal does so under s 9A of the Trade Marks Act. HUNGWE J (as he then was) *Bayer Aktiengesellschaft v Millborrow Animal Health (Zimbabwe* (considered the first-ever matter to be heard in the Intellectual Property Tribunal) held thus at page 3; -

> "The fact is that the rules of access to the Tribunal are prescribed in the Act.[4] (the Act"). Where a review of the decision of the Registrar is contemplated, the Act permits this Tribunal to exercise such powers where an application is brought in terms of section 37 of the Act."

[68] Accordingly, as point (d), a comprehensive appreciation of the jurisdiction, powers and procedure in the Intellectual Property Tribunal Act demands a survey of Part II (Establishment and Composition of Intellectual Property Tribunal), Part III (Jurisdiction and Powers of Tribunal), Part IV, (Procedure and Evidence) and Part V (Registrar of Tribunal and Record of Proceedings) of the Intellectual Property Tribunal Act.

[69] As point (e), all these considerations must be taken against the changes in the law adverted to above. As stated, the old Trade Marks Act [Chapter 203] was revised, reclassified and extensively amended by the Trade Marks Amendment Act, 2001 (Act No. 10 of 2001). This latter Act repealed, by its s 12, the old s66 of Chapter 203 which had provided for the crafting of rules under the old regime.

[70] A comparison of the old repealed s66 and current s12 of the Intellectual Property Tribunal Act reveals an entirely different framework regarding the procedure regulating the adjudication of intellectual property disputes. A framework that in every sense, opposes the recrudescence of the old intellectual property legal regime. I close this discussion with the below opinion; -

> "The operationalisation of the IPT had been long overdue as the Bill was introduced as far back as 2001 but was only enacted 9 years later in 2010. To date, 18 years after the introduction of the Bill and 9 years after the IPT came into operation, the rules and regulations governing the IPT have yet to be promulgated. Fortunately, due to the transitional provisions set out in Section 22 of the Intellectual Property Tribunal Act, the lack of rules and regulations is not fatal to the operation and workings of the IPT. Section 22(3) provides for the continued application of

[4] Sections 64 – 68 of the Trade Marks Act, [*Chapter 26:04*]

> the Patents Tribunal Rules until the IPT rules are established. Further, Section 12(2) of the Intellectual Property Tribunal Act provides for the application of the High Court civil procedures and practices where there are gaps in the rules."[5]

EFFECT OF PEPSICO`S NON-JOINDER

[71] In resolving this point, the question is whether assignment of the registered mark to PepsiCo was (a) proven and (b) forms sufficient basis to confirm PepsiCo`s interest in the matter. Despite the intensity of Mr *Uriri*`s contrary argument, the answer lies (to borrow a colloquial oxymoron) buried in the plain sight of s 70 of the Trade Marks Act which stipulates that; -

> 70 Registration to be prima facie evidence of validity
>
> In all legal proceedings relating to a registered trade mark, including applications under section *thirty-seven*, the fact that a person is registered as proprietor of the trade mark shall be prima facie evidence of the validity of the original registration of the trade mark **and of all subsequent assignments and transmissions thereof. [** stressed for emphasis**]**

[72] Mr *Uriri*`s forceful submissions challenging the prima facie effectiveness of the assignment[6], could not offset the position created by the above phrase in s70. Nor for that matter, the authorities on the presumption of validity of administrative acts. The passage cited by Mr *Magwaliba* in *Oudekraal Estates (Pty) Ltd v City of Cape Town & Ors* 2004 (6) SA 222, accords with the law on the point in the jurisdiction.

[73] See decisions such as *In Re: Prosecutor-General of Zimbabwe on His Constitutional Independence and Protection from Direction and Control* CCZ 13-17; *Magaya v Zimbabwe Gender Commission* SC 105-21). In *Oudekraal Estates (Pty) Ltd v City of Cape Town & Ors*, it was held at para 26 that; -

> "Until the Administrator's approval (and thus also the consequences of the approval) is set aside by a court in proceedings for judicial review it exists in fact and it has

[5]L.Takaendesa, https://www.honeyb.co.zw/zimbabwe-intellectual-property-tribunal-hands-down-first-judgement/
[6] (including citation of authorities like *Schierhaut v Minister of Justice* 1926 AD 99) and *MA. Sharmaine R. Medina /Rackey Crystal Top Corporation v Global Quest Ventures Inc*

> legal consequences that cannot simply be overlooked…it is for this reason that our law has always recognised that even an unlawful administrative act is capable of producing legally valid consequences for so long as the unlawful act is not set aside."

[74] Afdis seeks by order of this court, to strip PepsiCo of its right under the assumption. Indisputable therefore, is the effect of such order on PepsiCo`s interests in the trade mark. Mr *Magwaliba* argued that from that perspective, non-joinder of PepsiCo was a fatal omission whose effect was to defeat the application outrightly.

[75] Mr *Uriri* took the position that in terms of our law non-joinder was not necessarily fatal to proceedings. Mr *Magwaliba* argued to the contrary. I may state that the authorities cited by counsel from both sides on the point extol the principles summarised in the following excerpt from Herbstein and Van Winsen at pages 208-9[7]

> "Parties are often joined for reasons of convenience and equity and to avoid oppression or a multiplicity of actions. Apart from considerations of convenience, however, there are circumstances in which it is essential to join a party because of the interest that party has in the matter. When such an interest becomes apparent the court has no discretion and will not allow the matter to proceed without joinder, or giving of judicial notice of the proceedings to that party. The reason for this is that it is a principle of our law that interested parties should be afforded an opportunity to be heard in matters in which they have a direct and substantial interest.
>
> It is important to distinguish between necessary joinder, where failure to join a party amount to a non-joinder, and joinder as a matter of convenience where the joinder of a party is permissible but does not give rise to non-joinder. In cases of joinder of necessity, if parties do not raise the issue of non-joinder, the court should raise it *mero motu* to safeguard the interests of third parties and it should decline to hear the matter until such joinder has been effected, or until the court is satisfied that the third parties have consented to be bound by the judgement or have waived their right to be joined. …... **Guidance must be sought from the case law as to when joinder of parties is essential**." [underlined and emboldened for emphasis]

[7] Herbstein and Van Winsen`s The Civil Practice of the High Court and Supreme Court of Appeal of South Africa-5th Edition, Juta

[76] With these principles in mind, I proceed to examine the arguments placed before me. As stated, the present application is governed by the Commercial Court Rules which by r 4 (2) thereof, advert to the High Court Rules. See *Mac En Paul Private Limited v Gwanda Municipality & Zinara* HH 227-25. The High Court Rules in turn, address by rr 32 (11) and (12), the question of non-joinder as follows; -

> "(11) No cause or matter shall be defeated by reason of the misjoinder or non-joinder of any party and the court may in any cause or matter determine the issues or questions in dispute so far as they affect the rights and interests of the persons who are parties to the cause or matter.
>
> (12) **At any stage of the proceedings** in any cause or matter **the court may on such terms as it thinks just and either on its own initiative or on application**—
>
> (*a*) order any person who has been improperly or unnecessarily made a party or who has for any reason ceased to be a proper or necessary party, to cease to be a party;
>
> (*b*) order any person who ought to have been joined as a party or whose presence before the court is necessary to ensure that all matters in dispute in the cause or matter may be effectually and completely determined and adjudicated upon, to be added as a party:
>
> Provided that no person shall be added as a plaintiff without his or her signed written consent or in such other manner as may be authorised." [underlined and emboldened for emphasis]

[77] These provisions, are a replica of the old r 87 in the High Court 1971 Rules. Rule 87 was interpreted in the following terms by the GARWE JA (as he then was) in *Wakatama & Ors v Madamombe* 2011 (1) ZLR 10 (S) at [at page 14 A-D].

> "The question whether the non-joinder of the Minister is fatal need not detain this court and can easily be disposed by reference to r 87 of the High Court Rules

……The above provision is clear and allows of no ambiguity. The non-citation of the Minister is not, in the circumstances, fatal. Indeed, this court restated this position in the recent decision in *Gula-Ndebele* v *Bhunu NO* S-29-11."

[78] This approach has been followed in the jurisdiction -see *Ecocash Zimbabwe (Private) Limited v Reserve Bank of Zimbabwe* HH 333-20, *Zvoushe & Anor v Moyo & 3 Ors* HB 90-17; *Nyika Nhundu v African Lithium Resources (Pvt) Ltd & 3 Ors* HMA 10-23. Similarly, the Supreme Court per CHIWESHE JA in *Mwazha & 9 Ors v Mhambare* SC 116-21 restated the position as follows at page 7; -

"The remedy for non-joinder is provided for in r 87 itself. A party who is aggrieved by the non-joinder of another party must proceed in terms of r 87(2) and make the necessary application for the joinder of that other party. It is thus permissible for a court to order the joinder of any party either on its own motion or on the application of any of the Judgment parties before it, or, for that matter, any other party who may have an interest in the outcome of the matter. The appellants, being of the view that the Archbishop ought to have been joined in the proceedings before the court *a quo* chose not to apply for the Archbishop's joinder. They cannot now be heard to cry foul and seek to rely on their own inadvertence as a ground of appeal to this Court. Having chosen not to apply for the Archbishop's joinder the least the appellants could have done was to file a supporting affidavit sworn to by the Archbishop confirming that he had appointed the first appellant as his successor. No such affidavit was filed. The *onus* lay upon the first appellant to prove on a balance of probabilities that he had been so appointed to succeed the Archbishop as head of the Church." [underlined for emphasis]

"In any event the order sought does not prejudice the Archbishop or any of the parties. On the contrary, what was sought by the respondent (applicant in the court *a quo*) is a declaratur to the effect that the question of succession be dealt with in accordance with the Constitution of the Church. No prejudice against anyone could possibly arise out of such a declaration. On the contrary the first appellant's

contention is that he was appointed successor in accordance with that Constitution. By inference therefore the first appellant agrees that the question of succession must proceed in terms of the Constitution. That is precisely the position declared by the court *a quo*."

[79] Two main issues emerge from the *Wakatama* and *Mwazha* decisions. Firstly that, ahead of all else, the rules of court prescribe that no matter must be ousted purely on the basis on non-joinder. Thus Mr *Uriri* was correct. The general rule is that non-joinder is not per se fatal. The next issue from the two authorities is that a party aggrieved or concerned by the effects of non-joinder must take steps to have the misstep remedied.

[80] Alternatively, the court may *mero motu*, order joinder on the excluded party. The overarching considerations to guide a court being those aspects addressed in the Van Winsen passage above. In *Mwazha*, CHIWESHE JA dealt with the said considerations as quoted above. A quick survey of the authorities on the point (cited by both sides) discloses the considerations that have guided the courts over the years in interpreting r 32 and its predecessor r 87.

[81] The regular thread running through the authorities is that non-joinder becomes fatal where proceedings are concluded in the absence of a party affected by the matter. Put differently, where the proceedings are yet to be finalised, there would ordinarily be no basis to avoid joining a relevant party under the mechanisms created by r 32.I advert to a few decisions hereunder; -

i. *Rose v Arnold & Ors* 1995 (2) ZLR 17 (H)
ROBINSON J considered non-joinder as fatal because the applicant had already secured, to the exclusion of the non-joined party, a provisional order whose confirmation she now sought. The ratio decidendi is set pout at page 19 as follows; -

"In response to this the applicant filed an answering affidavit. The matter came up before me as an opposed motion, when the applicant moved for the

confirmation of the provisional order. It was not necessary for me to address the merits since the motion for confirmation of the provisional order had no chance of succeeding on two basic preliminary grounds. In the first place, because the applicant has not joined GL as a respondent to the proceedings, GL has not been given the opportunity of responding to the provisional order, which is of vital concern to him in that, if confirmed, the effect of the final order will be to interdict him permanently from transferring his claims to the first or second respondent in pursuance of a contract which it appears GL entered into with the first respondent in all good faith."

ii. *Rodger & Ors v Muller & Ors* 2010 (1) ZLR 49 (H)

PATEL J (as he then was) held at 53 [B-C] ruled non-joinder as fatal but qualified his conclusion with a cautionary; -

"While I accept that the non-joinder of a party is not necessarily and invariably fatal to the continuance or determination of any matter, it is trite that r 87(1) does not absolve a litigant of the obligation to cite all relevant parties. The discretion of the court in this regard must be exercised so as to ensure that all persons who might be affected by its determination of the issues in dispute be afforded the opportunity to be heard before that determination is actually made……..….[at 53 F-H] In my view, he is undoubtedly a highly relevant party to these proceedings with a very direct interest in the outcome and determination thereof. It follows that the failure to cite the Minister in this matter is fatal and that the application should be dismissed simply on that preliminary basis. **However, given the possibility that my conclusion in this regard is incorrect, I shall proceed to consider and determine the merits of this case**." [underlined and emboldened for emphasis]

iii. *Gula-Ndebele v Bhunu NO* 2010 (1) ZLR 78 (H)[8]

[8] See also *Gula-Ndebele v Bhunu NO* SC 29-11

MAKARAUP JP (as she then was) observed as follows at 85 D;

"It is therefore my finding that the non-citation of the President in this application is fatal to the applicant's application. As indicated above, it is untenable for the applicant to suggest that he can attack the recommendation of the tribunal only, without affecting the act of the President to remove him from office. The act of removing him from office cannot lawfully exist without the requisite recommendation and thus to attack one is of necessity to attack the other. In that regard and to be procedurally correct, the President must be made a party to the proceedings. This court cannot make an order adversely affecting the action of the President without affording him the right to be heard."

iv. *Indium Investments (Pvt) Ltd v Kingshaven (Pvt) Ltd* 2015 (2) ZLR 40 (S),

The ratio decidendi was apparently that failure to take steps to include a party relevant to proceedings is fatal. GOWORA JA (as she then was) held as follows at page 8; -

"The *ratio* of the decision of the court strikes at the rights of Shah and Mahabeer without affording them the right to be heard. I say so for the reason that a judgment in which the court stated that the acquisition of shares by the two was a nullity could not be made in their absence and in proceedings in which they have not been cited as parties. The question that arises for determination is whether such a judgment can be said to be valid and binding as against Shah and Mahabeer. In *Hundah v Murauro* 1993 (2) ZLR 401 the point was made that for a party who has a real interest in the matter in dispute before a court to be bound by a judgment of the court such party should be cited. At p 404E-G the court stated:

v. *Marange Resources (Private) Limited v Core Mining & Minerals (Pvt) Ltd (In Liquidation) & 3 Ors* SC 37-16

HLATSHWAYO JA (as he then was) cited authorities on citation of a wrong or non-existent party. In a scathing admonition of the applicant`s antics in mis-citation of a relevant party, the Learned Judge of Appeal held at page 9 that; -

"Thus, the fate of an application where a wrong party is cited is clear. The proceedings cannot be sustained. *In casu*, the wrong citation was compounded by the appellant's stubborn refusal to rectify the error even when assured by the other side that such an application would not be opposed. This application should therefore suffer not only the general fate consequent upon such errors, but also an exemplary order of costs wrought by the appellant's unhelpful attitude. The other matters raised in the appeal necessarily fall away in the light of this conclusion."

[82] I am therefore satisfied that an order directing the joinder of PepsiCo would be fitting in this matter. But only if the Afdis clears the remaining 2 hurdles regarding on prescription and cause of action.

PRESCRIPTION

[83] This point *in limine* was predicated on the statutory time bar set out in s 16 (1) of the Trade Marks Act rather than the universal Prescription Act [Chapter 8:11]. The obvious distinction being that we are concerned here with the conditions and exceptions set out in s 16 rather than the Prescription Act. I set out s 16 of the Trade Marks Act below; -

16 Registration in Part A to be conclusive as to validity after five years

In all legal proceedings relating to a trade mark registered in Part A of the Register, including applications under section *thirty-seven*, the original registration of the trade mark in Part A of the Register shall, after the expiration of five years from the date of that registration, be taken to be valid in all respects, **unless**—

(*a*) that registration was obtained by fraud; or

(*b*) the trade mark offends against section *fourteen*:

Provided that this section shall not preclude the expunging or variation in terms of subsection (2) of *section thirty-eight* of the registration of a distinguishing guise.

[84] Mr *Uriri* argued that the present proceedings, though brought outside the 5-year period stipulated in s 16, fell into the exception stipulated because the claim related to s 14 violations. The said s 14 provides as follows; -

14 Prohibition of registration or maintenance of registration of deceptive, etc., matter
(1) A mark—

(*a*) the use of which would be likely to deceive or cause confusion; or

(*b*) the use of which would be contrary to law; or

(*c*) which comprises or contains scandalous matter; or

(*d*) which is prescribed to be a prohibited mark; or

(*e*) which, for any other reason, would not be entitled to protection in a court of law;
shall not be registered as a trade mark.

(2) It shall not be lawful to maintain the registration of a trade mark which, through fault or neglect on the part of the registered proprietor or his assignee, has become one which is likely to deceive or cause confusion or which, for any other reason, would not be entitled to protection in a court of law.

(2a) Without derogation from subsection (1) or (2), the Registrar shall, on his own initiative on initiative or at the request of an interested party, refuse or invalidate the registration of a trade mark which contains or consists of a geographical indication with respect to goods not originating in the territory indicated, if use of the indication in the trademark of such goods in Zimbabwe is of such a nature as to mislead the public as to the true nature of origin.

(3) Where, in the opinion of the Registrar, a trade mark will in use be likely to deceive or cause confusion as to the character or quality of some, but not all, of the goods or services included in the appropriate classification referred to in section *seven*, the Registrar may, notwithstanding subsection (1) of section *thirty-one*, upon

> receipt of an undertaking by the proprietor of the trade mark that he will limit the use of the trade mark to goods or services in relation to which such use will, in the opinion of the Registrar, not be likely to deceive or cause confusion, register the trade mark in respect of the goods or services concerned and of some or all of the other goods or services included in the appropriate classification referred to in section *seven*.

[85] I cannot, after considering the dispute and prayer before, agree with Mr *Magwaliba* that we are not about an inquiry as to whether trade mark offends s 14. I did set out the averments in the affidavit founding this application above. Clearly, it attacks the validity of the registration enroute to praying for its reversal. The argument that Afdis ought to have specifically pleaded violation of s 14 in order to qualify under the exception in s 16 of the Trade Marks Act is defeated by the very wording applied in framing the exception.

[86] The question of how Afdis pleaded its causa takes us to the last point *in limine*. Mr *Magwaliba* cited the decision of *Redwing Mining Company (Pvt) Limited v Associated Mine Workers Union of Zimbabwe & 2 Ors* Sc 96-22 in arguing that Afdis in pleading its causa, failed "identify that statute and comply with its procedures". As noted above, counsel traversed the length and breadth of Afdis` papers in mounting the contention that the cause of action was both confused and confusing.

[87] In *Redwing Mining Company (Pvt) Limited v Associated Mine Workers Union of Zimbabwe & 2 Ors (supra)* the court was concerned with compliance with statutory requirements especially notice to relevant parties ahead of the pleading of a causa. More apt would be the authorities considered, and discussion set out in this court`s decision per DUBE JP who commented as follows at page 4 of *Al Shams Global BVI Ltd v Reserve Bank of Zimbabwe* HH 571-23; -

> "The issue is whether the case was formulated clearly despite the shortcomings. *In casu,* the plaintiff specified the statutory duty relied on by making reference to s 6(1)(e) of the Act for the proposition that the RBZ has a statutory duty to supervise all banking institutions. The particulars of the breach are particularized in para 12 of the declaration. Its bone of contention is that the RBZ was negligent in that it

> allowed Interfin to operate with a capital deficit alleging that it failed to take action as required by s48 of the Banking Act. Whilst the plaintiff did not lay out in detail the provisions of s48 which specify the course open to the RBZ when faced with a weak bank, the pleadings are clear that the cause of action relied on is breach of statutory duty as provided for in the legal framework referred to. Fairly detailed particularity of the statutory duty was given and the case formulated and pleaded in such a way that the other party is left in no doubt regarding the nature of the statutory duty alleged, the statutes and sections relied on, enabling it to answer to the allegations. The facts as pleaded justify the conclusion that the provisions of the statutes relied on apply. This case is distinguishable from Local *Authorities Pension Fund v Nyakwawa & Ors* 2015 (1) ZLR 103 (H), where there were two possible statutes referred to in pleadings rendering the other party unable to answer the case brought against it. Although there are two statutes cited here, they are inter- related and the statutes relied on are not in doubt as they are named."

[88] Additional to the above excerpt, and especially the authorities cited in the same decision, I have had regard to the trite position on the definition and purview of cause action[9], viewed against, as stated, the matters pleaded. The causa herein is based on rights in, and alleged breaches of the provisions of the Trade Marks Act. The point *in limine* drew the court to delve into the merits.

[89] I thus find myself in agreement with Mr *Uriri* that the point *in limine* is immersed in, and inseparable from the merits. It is not dispositive of the matter and will thus be disallowed. This conclusion does not put an end to the matter. The criticism of the manner in which Afdis pleaded its causa remains alive. Afdis must still extricate itself, in arguing the matter on the merits, from the fissures created by the said attacks on how it framed its causa.

DISPOSITION

[90] With this finding disallowing the final point *in limine*, I return to the question of joinder. In doing so I will examine a few aspects of this dispute not out of province, but in the exercise of the discretion demanded by r 32 (11) and (12) of the High Court Rules, and in

[9] See *Dube v Banana* 1998 (2) ZLR 92 (H); *Peebles v Dairibord (Pvt) Ltd* 1999(1) ZLR 41 (H),

furtherance of the objects of this Court as set out inter alia, in the Second Schedule of its rules.

[91] These being critical aspects in the resolution of this dispute to be expressed in the order I must hand down. Including the question of costs, the next processes, the expedient resolution of the dispute and of course-the need to benefit from clarity of hindsight. I recognise in that regard, that the joinder of PepsiCo raises the prospect of another cycle of opposition, replies, answers, legal arguments and further procedural dissonance.

[92] Such matters stand as possible impediments to the disposal of the dispute before the court. I note as well, that this matter qualifies as a civil dispute of commercial significance per r 3 (1) of the Commercial Court Rules. Not least because both Afdis and Varun rely -in the conduct of business-on the exercise of intellectual property rights. For that reason, I advert to the principles of resolution of matters in the Commercial Court articulated extensively in the authorities cited in paragraph.

[93] I remain inspired-in exercising this consideration- by the guidance of HLATSHWAYO JA in *Marange Resources (Private) Limited v Core Mining & Minerals*. The Learned Judge of Appeal bemoaned litigants who perfidiously impeded the efficient disposal of matters. So dismayed was his lordship that he described the respondent [applicant a quo] `s obstructive conduct in the following terms; -

> "In my view, this kind of sophistry, which the respondent, in the light of the parties' previous dealings characterises as "convenient amnesia", comes very close to what has been termed 'fraudulent diligence in ignorance'.

[94] Mercifully, the papers before me raise no such alarm. But they do invite a number of questions. I was not, after hearing argument, convinced that the question of PepsiCo`s interest could not have been established via due diligence (by Afdis), or disclosure (by Varun) before institution of proceedings so as to facilitate its citation.

[95] That citation would have obviated the present stretch of adjectival agonies. In *Marange Resources (Private) Limited v Core Mining & Minerals*, the court referred to Peter van Blerk`

Legal Drafting: Civil Proceedings, on the obligation of a *dominus litis* to correctly identify all relevant parties to an action. But again as submitted by Mr *Uriri* in paragraph 13.5 of his written submissions[10], Varun was content to act as PepsiCo`s "proxy".

[96] That averment finds justification. Mr *Magwaliba* himself for Varun, went so far as asserting that failure by Afdis to cite PepsiCo in the present application violated PepsiCo`s its constitutional right to a fair hearing. Which again brings to fore the question as to why, in the interests of expediency, did Varun not file a counter application seeking PepsiCo`s joinder?

[97] Varun`s mere opposition, forceful as it was amounted- per *Sumbureru v Chirunda* 1992 (1) ZLR 240 (H), to "a mere shield rather than an actual spear". The above considerations as stated, will influence the order I shall hand down. The conduct by each party in these respects affects the issue of the costs arising from these proceedings. I am inclined to stay that question until the conclusion of the matter.

[98] The same considerations also direct me to resort to the case management facility in the Commercial Court Rules in addressing issues attendant to PepsiCo`s joinder[11]. For instance, to ascertain the further particulars of PepsiCo for purpose of ordering its proper citation herein. That in addition to the ancillary matters raised in the papers regarding the subsequent filings by Varun.

Accordingly it is ordered that

1. The points *in limine* taken by first respondent be and are hereby dismissed with the question of costs being reserved for determination in the main matter.

2. Subject to the directions in paragraphs 3 and 4 of this Order, the assignee to trade mark registration 437/18, Pepsi Co Inc whose further particulars may be ascertained

[10] Record page 165
[11] See *Blakey Investments (Pty) Ltd v Delta Beverages (Pvt) Ltd & 2 Ors* HH 388-23, *Streamspace Incorporated (Pvt) Ltd, Hayes Construction (Pvt) Ltd & 6 Ors* HH 53-25) and the guidance of the Supreme Court per MAVANGIRA JA in *Inebriant Cache & Anor v French Smith trading as Customs Services* SC 89-24.

in terms of the said paragraphs 3 and 4 of this Order, be and is hereby joined to the proceedings.

3. Applicant and first respondent engage over the joinder of Pepsi Co Inc and to file, within 14 days hereof, a jointly executed draft consent order setting out the time and manner for the joinder of Pepsi Co Inc to the present proceedings, as well observance of the requisite formalities prescribed by rule 32 of the High Court Rules SI 202 of 2021.

4. In the event that parties are unable to secure a consensus on the direction in paragraph 3 of this Order, either party to file a request for the set down of this matter for a case management conference in terms of rule 18 of the High Court (Commercial Division) Rules SI 123 of 2020.

Samuriwo Attorneys-applicant`s legal practitioners
Ranchhod Associates -first respondent's Legal Practitioners

[CHILIMBE J__17 November 2025]